



PLANNING &
DEVELOPMENT
2101 O'Neil Avenue
Cheyenne, WY 82001
(307) 637-6282
cheyennecity.org

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-26-38 / Cox Ranch – Zoning Map Amendment
Date: April 13, 2026

Background:

The item for consideration is a Zoning Map Amendment (zone change). This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral April 13, 2026
- Public Services Committee April 20, 2026
- Second reading April 27, 2026
- Public Services Committee May 4, 2026
- Third and final reading May 4, 2026

Planning Commission Recommendation:

The Planning Commission heard this item at their April 6, 2026, meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and unchanged.

Public Comment

As of the creation of this memo (April 8, 2026), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 84 views and no comments.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE, CHANGING THE ZONING CLASSIFICATION FOR LAND LOCATED WEST OF ROUNDTOP ROAD AND ADJACENT TO HAPPY JACK ROAD FROM AG - AGRICULTURAL TO BP – BUSINESS PARK.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner of real property located west of Roundtop Road and adjacent to Happy Jack Road has applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on April 6, 2026, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned zoning map amendment application is hereby approved and the zoning classification of the real property described as:

A Parcel Of Land Located In Township 14 North, Range 67 West Of The 6th P.M., Laramie County, Wyoming, Being More Particularly Described As Follows:

All Of Section 31 Lying North Of The Northerly Right Of Way Of Happy Jack Road (State Highway 210) And East Of The Access Easement Granting Ingress And Egress To The Lands North In Section 30, And Also Lying Southerly From A Barbed Wire Fence That Runs North Of North 1/16th Line Of Section 31 Terminating At The East 1/16th Line, Then Including The Northeast 1/4 Of The Northeast 1/4 Of Said Section 31 And Going Southerly To The Northerly Right Of Way Of Happy Jack Road (State Highway 210) Plus, The East 1/2 Of The Southeast 1/4 Of Section 30, Township 14 North, Range 67 West Of The 6th P.M., Laramie County, Wyoming.

Plus, The West 1/2 Of Section 29, Township 14 North, Range 67 West Of The 6th P.M., Laramie County, Wyoming.

Plus, All Of Section 32, Except The East 1/2 Of The Northeast 1/4 And The East 1/2 Of The Southeast 1/4, Township 14, North Range 67 West Of The 6th P.M., Laramie County, Wyoming.

Plus, A Parcel Of Land In Lot 1, Section 5, Township 13 North, Range 67 West Of The 6th P.M., Laramie County, Wyoming Being More Particularly Described As Follows:

All Land North Of Happy Jack Road Plus A Portion Land Being More Particularly Described As Follows: Beginning At A Point Which Bears South 57°23'13" West, A Distance Of 536.77 Feet From The Section Corner Common To Sections 4 And Section 5 Of Said Township 13 North Range 67 West; Thence From Said Point Of Beginning South 54°59'51" West, A Distance Of 293.43 Feet To A Point Monumented By A Standard Concrete Highway Right Of Way Marker; Thence South 55°08'58" West, A Distance Of 107.26 Feet To A Point Monumented By A Standard Concrete Highway Right Of Way Marker; Thence South 52°33'11" West, A Distance Of 48.05 Feet To A Point Monumented By A Standard Concrete Highway Right Of Way Marker; Thence South 86°51'31" West, A Distance Of 525.00 Feet Along The Existing Right Of Way Line To A Point; Thence North 74°06'24" East, A Distance Of 465.28 Feet To A Point; Thence North 70°07'52" East, A Distance Of 471.30 Feet To The Point Of Beginning. Plus A Portion Of Land Situate In Section 5, Township 13 North, Range 67 West Of The 6th P.M., Laramie County, Wyoming Being More Particularly Described As Follows:

Beginning At A Point On The Southerly Right Of Way Of State Highway No. 210 Which Bears South 59°12'48" West, A Distance Of 296.69 Feet From The Northeast Section Corner Of Said Section 5. The Northeast Section Corner Is Monumented By A 3 1/4" Diameter Aluminum Pipe Monument Set By Pls 2927; Thence From Said Point Of Beginning South 55°07'58" West, A Distance Of 240.42 Feet Along The Existing Southerly Right Of Way To A Standard Highway Department Right Of Way Marker; Thence South 70°07'52" West, A Distance Of 471.30 Feet To A Point; Thence North 60°17'24" East, A Distance Of 407.38 To A Point; Thence North 71°32'11" East, A Distance Of 302.23 Feet To The Point Of Beginning.

is hereby changed to BP – Business Park.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

CITY OF
CHEYENNE
PLANNING &
DEVELOPMENT

CITY OF CHEYENNE PLANNING COMMISSION

APRIL 6, 2026

STAFF REPORT

FILE: PUDC-26-38: Cox Lands – Zoning Map Amendment (zone change)

REQUEST: A request to rezone approximately 1,197.76 acres of land from AG - Agricultural to BP Business Park.

LOCATION: West of Roundtop Road and adjacent to Happy Jack Road.

APPLICANT: Cox, William S Revocable Trust

AGENT: AVI PC

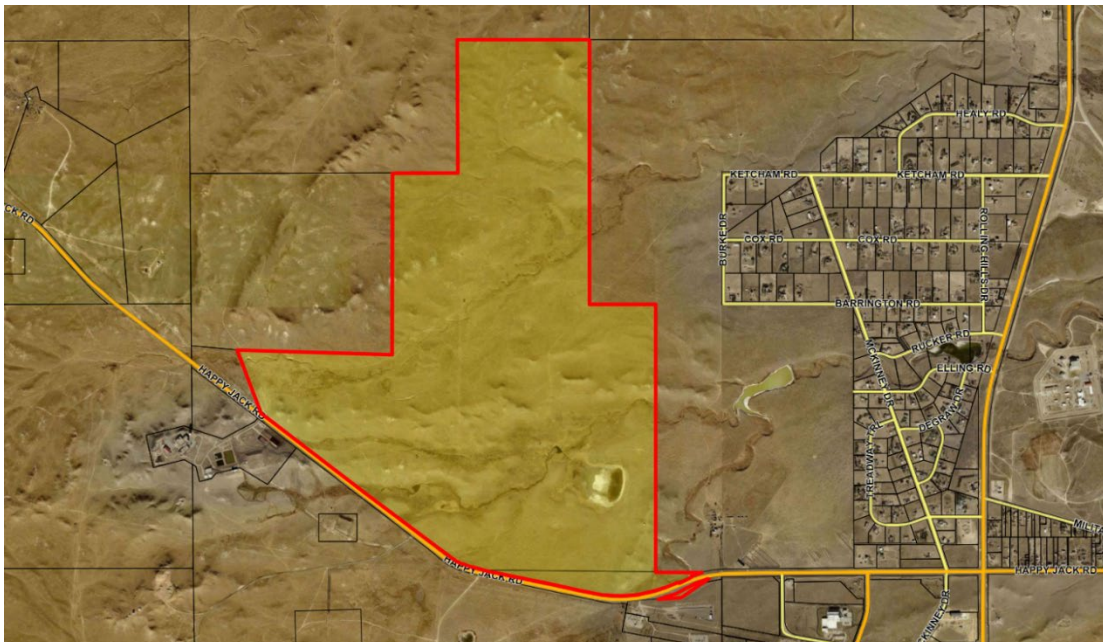
OWNER: Cox, William S Revocable Trust

ZONING: Currently LU Land use
AG – Agricultural (assigned zoning with annexation)

FUTURE LAND USE: Currently not designated and Urban Transition Residential
Proposed Mixed-use Employment

PURPOSE: To zone land BP for development.

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to **approve** the rezoning of 1,197.76 acres of land west of Roundtop Road and north of Happy Jack Road to BP Business Park as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from AG Agricultural to BP Business Park for roughly 1,197.76 acres of land. The land is currently vacant.

The land subject to the zone change request is currently outside of City limits. The anticipated assigned zoning (base zone) with annexation is AG Agricultural.

The applicant has requested a change to the future land use map to change the designation from Urban Transition Residential / no designation to Mixed-use Employment. The application is PUDC-26-48.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Urban Transitional Residential / No Designation	County LU – Land Use (City AG Agricultural upon annexation)	Vacant
North	Agricultural/Rural / No Designation	County LU – Land Use	Vacant
South	Mixed-use Employment / No Designation	County LU – Land Use and City LI Light Industrial (part of the area will be City P Public upon annexation)	Vacant / Agriculture / Industrial / Water Treatment Facility
East	Urban Transitional Residential	County LU – Land Use	Agriculture / Single-family Residential
West	No Designation	County LU – Land Use	Vacant

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages opportunities for a range of industrial employment uses as well as encourages working with community partners such as LEADS. LEADS over sees much of North Range Business Park and this can be seen as an extension of the business park or its own business park.

The Future Land Use Designation for most of this property is currently Urban Transition Residential (part of the area does not have a designation). According to the comprehensive plan the optimal City zones for the subject property's future land use designation would be AR – Agricultural Residential or AG – Agriculture. The current future land use designation does not support the BP zone.

The applicant has requested an amendment to the future land use designation to change the entirety of the area to Mixed-use Employment. Should the future land use designation be approved it would support the BP zone as that designation would anticipate more commercial or industrial type zone districts.

The proposed zone change **complies** with review criterion 1 if the future land use map designation is approved.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

The proposed BP zone can be seen as an extension of the business park that already exists in this area or it can be seen as its own business park based on the size of the area being rezoned. Surrounding this parcel is either vacant land or ranches. The Cheyenne Water treatment plant is adjacent to the southwest and North Range Business park is to the southeast. The BP zone is meant to be a combination of the industrial and commercial zones to give business parks flexibility without needing multiple zone changes.

The proposed zone change for the subject property **complies** with review criterion 2 if the future land use map designation is approved.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The BP zone provides more flexibility for large sites in terms of landscaping. The current zone of AG is considered a holding zone for the property and should it be developed with industrial or commercial use, it would need to be rezoned.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

No changes to the street network are proposed at this time. Accesses will not be changed with the zone change. Infrastructure (streets and utilities) exist in the area.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The Business Park (BP) district is intended to support small and large-scale industrial development while providing essential commercial services along regional transportation routes in an industrial park setting. The district integrates manufacturing, processing, research and development, and shipping activities in addition to retail, dining, and convenience stores to enhance functionality and appeal for businesses and employees.

The BP district is applicable to areas on the edge of the community that are intended to support large-scale industrial, manufacturing, shipping, research and development, and data center uses. The district is typically found close to major transportation routes, making commercial uses appropriate. The district shall contain not less than 320 acres of land (interrupted only by roads, railroads, highways and natural features (such as ridges and waterways). Specifically, large-scale areas within the future land use designations in the comprehensive plan of Community Business, Mixed-Use Employment, and Industrial – including Community/Regional Activity Centers. Areas currently designated Agricultural/Rural (either inside or outside of the Urban Service Boundary) may also be appropriate for this zone district if near to regional transportation routes and if development of the area extends appropriate infrastructure.

The proposed zone could be part of an extension of North Range Business Park or it could become its own business park as it is over 320 acres. This property is also on the edge of the community.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The BP zone is a mix of the LI, HI and CB zone which allows for many different industrial and commercial uses. The BP zone will allow this property to develop with more uses than what is allowed in the AG zone. The AG zone was meant to be a holding zone for this property until it was ready for development.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No major comments received in regard to the proposed zone.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:

Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

The public was given notice of the project in the following ways:

- **Legal Notice** in the Wyoming Tribune Eagle published on March 21, 2026.
- **Posted Notice** Evidence of posted notice was provided showing that the signs were posted on March 30, 2026.
- **Internet Posting** on connect.cheyennecity.org on February 16, 2026.

As of the publication of the Staff Report (March 30, 2026), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 51 views and no comments.

STAFF REVIEW:

Through the review process, review comments were received expressing the appropriateness of the BP zone at this location.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The BP zone is appropriate based on the proposed future land use map amendment, surrounding zoning, surrounding development patterns, and proposed development.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

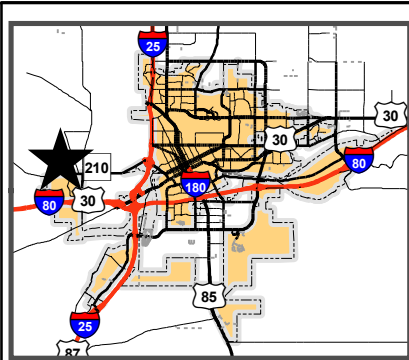
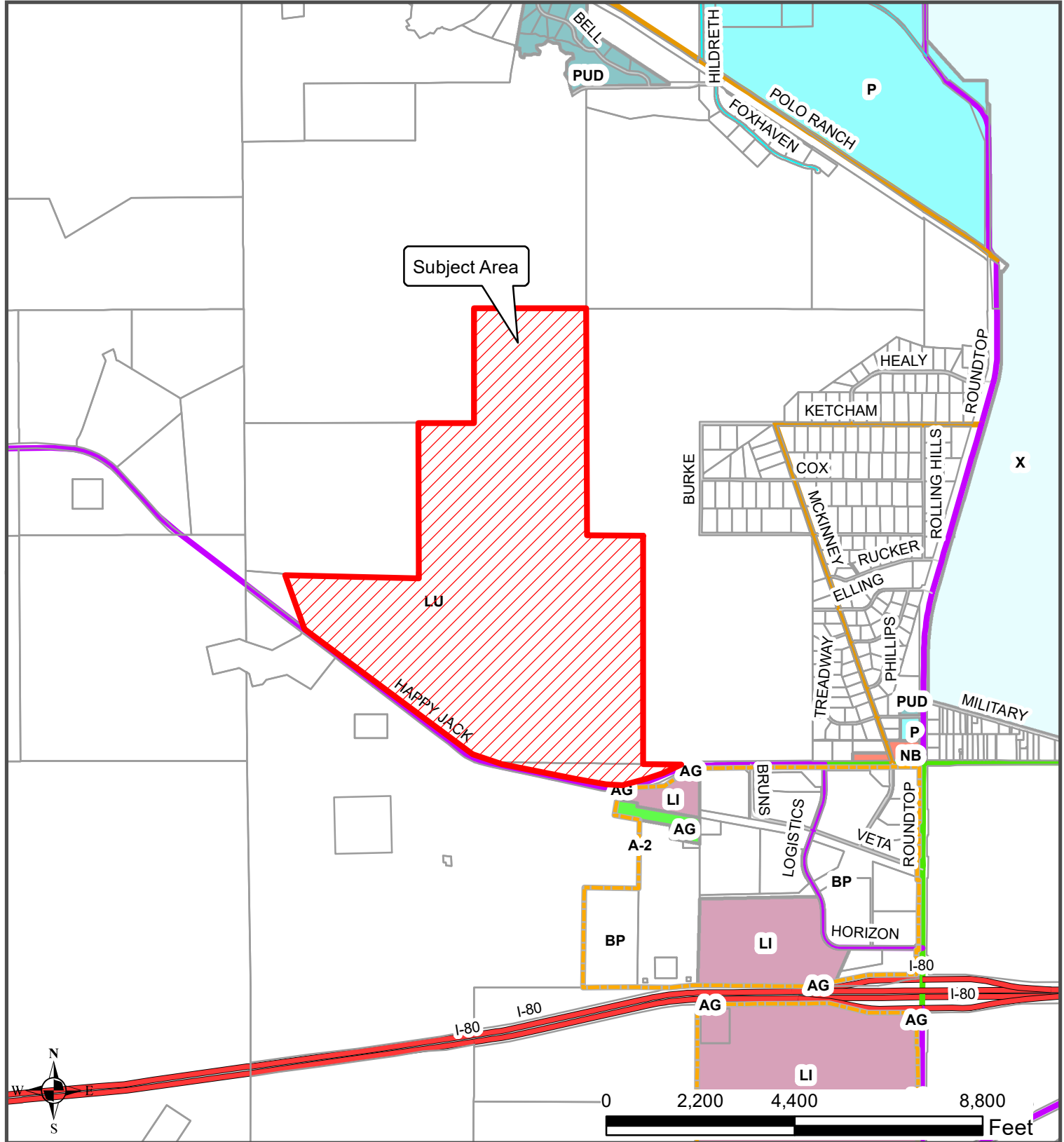
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from AG to BP.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

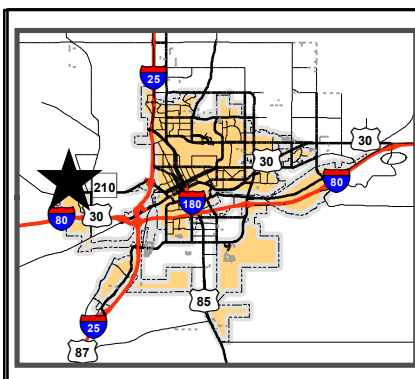
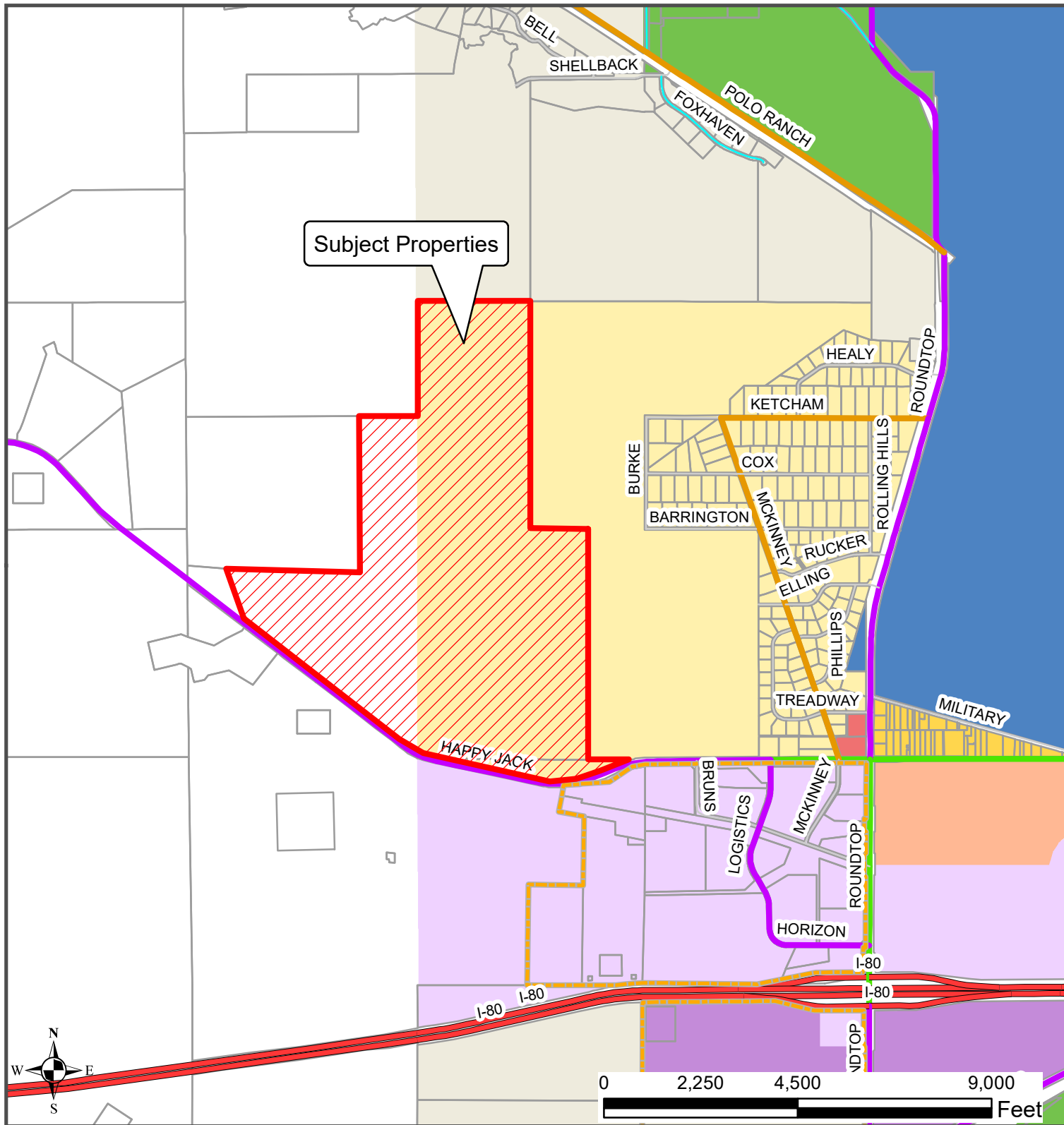


Attachment 1: Zoning Map PUDC-26-38

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-26-38

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- | | | |
|--------------------|------------------------------|---------------------------|
| City Limits | Agricultural/Rural | Industrial |
| Interstate | Rural Residential | Central Business District |
| Principal Arterial | Urban Transition Residential | Community Business |
| Minor Arterial | Urban Residential | Public and Quasi-Public |
| Major Collector | Mixed-Use Residential | Military/Federal |
| Minor Collector | Mixed-Use Commercial | Open Space and Parks |
| Local | Mixed-Use Employment | |
| Platted not built | | |
| Ownership | | |

**Record No: PUDC-
26-38**

Zoning Map Amendment

Status: Active

Submitted On: 2/11/2026

Primary Location

O HAPPY JACK RD
Cheyenne, WY 82009

Owner

COX, WILLIAM S REVOCABLE
TRUST
5811 PELICAN BAY BLVD STE
204 NAPLES, FL 341082710

Applicant

 AVI P.C.
 307-637-6017
 avi@avipc.com
 1103 Old Town Lane #101
Cheyenne, WY 82009

Application

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

Project Name* 

Cox Lands

Proposed Zoning* 

BP Business Park

Project Description or notes 

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment.
Please acknowledge the proposed zoning map amendment meets each review criterion
by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*



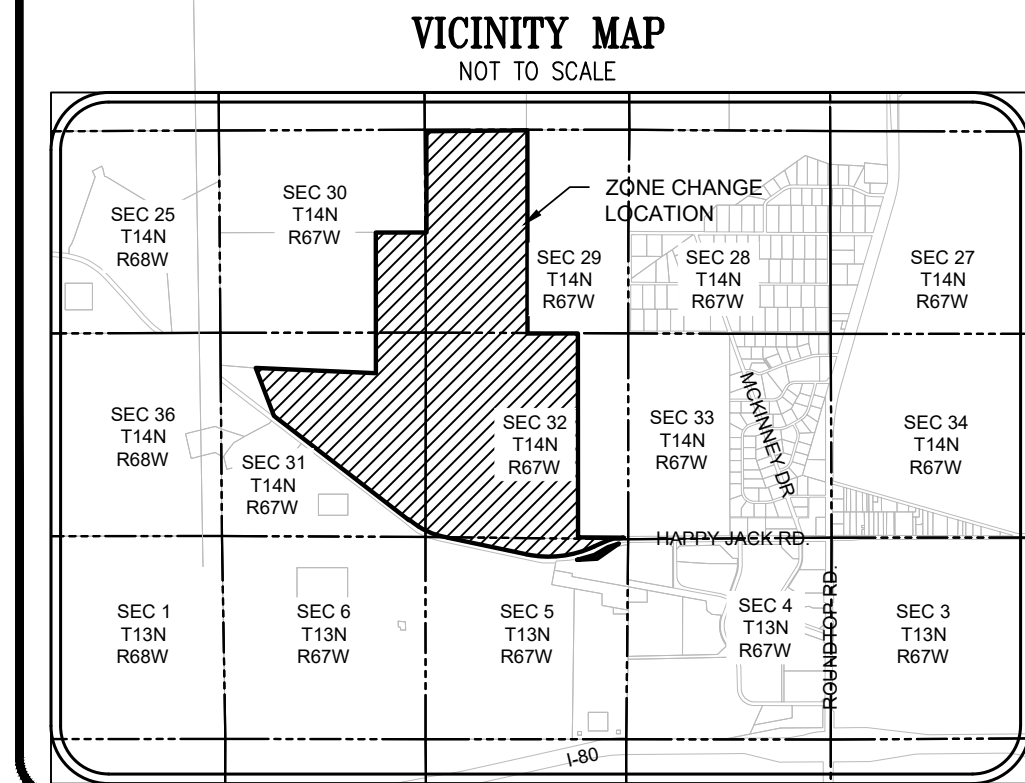
Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

✓ Bradley N. Emmons
Feb 11, 2026

Attachments

	Draft Neighbor Notification Letter cox land zone change notification.docx Uploaded by AVI P.C. on Feb 11, 2026 at 9:45 PM	REQUIRED
	Neighbor Notification List ADJACENT LANDOWNERS.xlsx Uploaded by AVI P.C. on Feb 11, 2026 at 4:43 PM	REQUIRED
	5077 FUTURE LAND USE AMENDMENT2-11-26.pdf 5077 FUTURE LAND USE AMENDMENT2-11-26.pdf Uploaded by AVI P.C. on Feb 11, 2026 at 4:35 PM	
	Letter of Authorization cox loa_001.pdf Uploaded by AVI P.C. on Feb 11, 2026 at 4:35 PM	REQUIRED
	Proposed Zoning Map 5077 COX ZONE CHANGE SUBMIT 2-11-26.pdf Uploaded by AVI P.C. on Feb 11, 2026 at 4:46 PM	REQUIRED



- LEGEND**
- FOUND ALUMINUM CAP
- FOUND BRASS CAP
- FOUND IRON ROD
- FOUND STONE
- FOUND WYDOT ROW MARKER
- PROPOSED ZONING CITY BP
- NOTES:**
- EXISTING ZONING: COUNTY LU
 - PROPOSED ZONING: CITY BP
 - PROPOSED USE: TO BE DETERMINED
 - NUMBER OF TRIPS PER DAY: TO BE DETERMINED
 - NEAREST FIRE HYDRANT: BRUNS WAY SOUTH OF HAPPY JACK ROAD

PARCEL I
A PARCEL OF LAND LOCATED IN TOWNSHIP 14 NORTH, RANGE 67 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:
ALL OF SECTION 31 LYING NORTH OF THE NORTHERLY RIGHT OF WAY OF HAPPY JACK ROAD (STATE HIGHWAY 210) AND EAST OF THE ACCESS EASEMENT GRANTING INGRESS AND EGRESS TO THE LANDS NORTH IN SECTION 30, AND ALSO LYING SOUTHERLY FROM A BARBED WIRE FENCE THAT RUNS NORTH OF NORTH 1/16TH LINE OF SECTION 31 TERMINATING AT THE EAST 1/2 OF SECTION 31, THEN INCLUDING THE NORTHEAST 1/4 OF THE NORTHEAST 1/4 OF SAID SECTION 31 AND GOING SOUTHERLY TO THE NORTHERLY RIGHT OF WAY OF HAPPY JACK ROAD (STATE HIGHWAY 210)
PLUS, THE EAST 1/2 OF THE SOUTHEAST 1/4 OF SECTION 30, TOWNSHIP 14 NORTH, RANGE 67 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING.
PLUS, THE WEST 1/2 OF SECTION 29, TOWNSHIP 14 NORTH, RANGE 67 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING.
PLUS, ALL OF SECTION 32, EXCEPT THE EAST 1/2 OF THE NORTHEAST 1/4 AND THE EAST 1/2 OF THE SOUTHEAST 1/4, TOWNSHIP 14, NORTH RANGE 67 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING.

ALSO BEING THOSE PARCELS DESCRIBED IN BOOK 2372 PAGE 669 AND 2711 PAGE 1715 OF THE LARAMIE COUNTY RECORDS

CURVE TABLE					
CURVE NO.	ARC LENGTH	RADIUS	DELTA ANGLE	CHORD BEARING	CHORD LENGTH
C1	535.01	1834.86	16°42'23"	S65°11'11"E	533.12
C2	1792.43	2789.79	36°48'44"	N83°32'06"E	1761.76

SITUATED IN A PORTIONS OF SECTIONS 29, 30, 31 AND 32
TOWNSHIP 14 NORTH, RANGE 67 WEST AND A PORTION
OF SECTION 5, TOWNSHIP 13 NORTH RANGE 67 WEST OF
THE SIXTH PRINCIPAL MERIDIAN
COUNTY OF LARAMIE, STATE OF WYOMING
PREPARED FEBRUARY 2026

PREPARED FOR: _____

PROJECT:	COX LANDS
DRAWING TITLE:	ZONE CHANGE



307.637.6017
1103 OLD TOWN LANE, SUITE 101
CHEYENNE, WY 82009
AVI@AVIPC.COM

DATE:	Feb 11, 2026
DRAWN BY:	
DESIGNED BY:	
CHECKED BY:	

JOB NO.: 5077

DRAWING NO. 1 OF 1